

Court No. - 21

Case :- WRIT - C No. - 32587 of 2021

Petitioner :- Raju Ali @ Muslim Ali

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Subedar Mishra, Anurag Shukla

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Naheed Ara Moonis, J.

Hon'ble Saumitra Dayal Singh, J.

Learned counsel for the Distribution Corporation prays for and is granted ten days' time to obtain written instructions.

Put up on 21.12.2021, as fresh.

Order Date :- 7.12.2021

M. Tariq

Court No. - 21

Case :- WRIT - C No. - 32587 of 2021

Petitioner :- Raju Ali @ Muslim Ali

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Subedar Mishra, Anurag Shukla

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Dr. Kaushal Jayendra Thaker, J.

Hon'ble Ajai Tyagi, J.

This matter has been listed before this Court by the orders of Hon'ble The Chief Justice.

Shri Narendra Kumar Tiwari, learned counsel for the respondent has absented himself, even in the revised call.

Reply, if any, be filed within two weeks from today.

List the matter on 11th January, 2022 as fresh.

Order Date :- 21.12.2021

Ashutosh Pandey

Court No. - 3

Case :- WRIT - C No. - 32587 of 2021

Petitioner :- Raju Ali @ Muslim Ali

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Subedar Mishra, Anurag Shukla

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Ashutosh Srivastava, J.

Despite the order dated 7.12.2021, learned counsel for the respondent nos. 2 and 3 could not get the instructions.

In view of the aforesaid, one more opportunity is afforded to the respondent nos. 2 and 3 to give instructions to their counsel or to file a counter affidavit within a week, failing which this Court may consider to impose exemplary cost upon the respondent no. 2 and 3 for compliance of the order.

Put up as a fresh case before the appropriate Bench on 19.1.2022.

This order shall be communicated by the learned counsel for the petitioner to the respondent nos. 2 and 3, in writing, within 48 hours.

Order Date :- 11.1.2022

n.u.

Court No. - 3

Case :- WRIT - C No. - 32587 of 2021

Petitioner :- Raju Ali @ Muslim Ali

Respondent :- State Of U.P. And 2 Others

Counsel for Petitioner :- Subedar Mishra, Anurag Shukla

Counsel for Respondent :- C.S.C., Narendra Kumar Tiwari

Hon'ble Surya Prakash Kesarwani, J.

Hon'ble Jayant Banerji, J.

Heard learned counsel for the petitioner, learned Standing Counsel for the State-respondents and Sri N.K. Tiwari, learned counsel for the respondent nos. 2 and 3.

This writ petition has been filed praying for the following relief:

"i) Issue a writ, order or direction in the nature of certiorari quashing demand notice dated 30.01.2021 issued under Section 3 of U.P. Government Electricity Undertakings (Dues Recovery) Act, 1958, by respondent no.3; during the pendency of the present civil misc. writ petition before this Hon'ble court.

ii) Issue a writ, order or direction in the nature of mandamus commanding the respondents not to recover the amount of Rs. 01,55,857/- demand in impugned demand notice dated 30.01.2021 issued under Section 3 of U.P. Government electricity Undertakings (Dues Recovery) Act, 1958, by respondent no.3."

Sri N.K. Tiwari, learned counsel for the respondent Nos 2 and 3/ Power Distribution Corporation, states on instructions that the petitioner may file objection against the impugned demand which shall be decided in accordance with law within a time bound period.

In view of the aforesaid and without expressing any opinion on merits of the case of the petitioner, **this writ petition is disposed of** giving liberty to the petitioner to submit his objection under Para 6.5 of U.P. Electricity Supply Code, 2005 before the respondent No. 3, within four weeks from today along with a certified copy of this order. In the event such an objection is submitted within the stipulated period, it shall be decided by the respondent No. 3 in accordance with law within next four weeks, after affording reasonable opportunity of hearing to the petitioner.

For a period of eight weeks or till disposal of the objection of the petitioner, whichever is earlier, no coercive action shall be taken against the petitioner in pursuance of the impugned demand.

Order Date :- 26.5.2022

sfa/